



CHAPTER 68

An Act to prohibit the recovery of possession, except by legal proceedings, of certain dwelling-houses released from control by subsection (1) of section eleven of the Rent Act, 1957, and to provide in certain cases for suspending for a limited period the execution of any order made in such proceedings; to regulate the terms and conditions as to rent and other matters to be applied in cases where possession of such dwelling-houses is retained pending the recovery of possession; and for purposes connected with the matters aforesaid.

[1st August, 1958]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) It shall not be lawful for the owner of a dwelling-house to which this Act applies—

- (a) to enforce against the occupier, otherwise than by proceedings in a court of competent jurisdiction, the right to recover possession of the dwelling-house; or
- (b) to withhold or withdraw from the occupier, without reasonable cause, any services to which, or any furniture to the use of which, the occupier is for the time being entitled under the following provisions of this Act;

Restriction upon recovery of possession, etc., of certain decontrolled dwelling-houses.

and if any person contravenes the provisions of this subsection he shall, without prejudice to any liability or remedy to which he may be subject in civil proceedings, be liable on summary conviction to a fine not exceeding one hundred pounds or to imprisonment for a term not exceeding six months, or both.

(2) Subject to subsection (3) of this section, this Act applies to any dwelling-house to which the Rent Acts ceased to apply by virtue of subsection (1) of section eleven of the Rent Act,

1957, being a dwelling-house in the case of which the following conditions are satisfied, that is to say—

(a) that notice has been served on the tenant by the landlord, whether before or after the commencement of this Act, under sub-paragraph (2) of paragraph 2 of the Fourth Schedule to that Act (which paragraph enables tenants under certain tenancies subsisting immediately before the commencement of that Act to retain possession until a date, not earlier than the sixth day of October, nineteen hundred and fifty-eight, specified in a notice served by the landlord); and

(b) that until the date specified in the notice, possession of the dwelling-house is retained by a person entitled to retain such possession by virtue of the said paragraph 2;

and “the occupier”, in relation to a dwelling-house to which this Act applies, means the person by whom possession of the dwelling-house is retained as aforesaid or, in the event of the death of that person, any person who, by virtue of paragraph (g) of subsection (1) of section twelve of the Act of 1920, would have been qualified to retain possession of the dwelling-house if the Rent Acts had not ceased to apply to it.

(3) If the occupier of a dwelling-house to which this Act applies—

(a) ceases to retain possession of the dwelling-house or any part of the dwelling-house; or

(b) retains possession of the dwelling-house or any part of the dwelling-house as tenant under a tenancy (whether granted before or after the application of this Act to the dwelling-house) not expiring, or terminable by notice to quit given by the landlord, earlier than three years from its commencement,

this Act shall cease to apply to the dwelling-house or to that part of the dwelling-house, as the case may be; and without prejudice to the foregoing provision, this Act shall not apply to a dwelling-house or any part of a dwelling-house during any period during which the occupier is entitled to possession of the dwelling-house or of that part of the dwelling-house as tenant under any tenancy granted by the owner.

(4) Any reference in this Act to a dwelling-house to which this Act applies includes a reference to any part of a dwelling-house, being a part to which this Act applies; but the rent to be paid under section two of this Act in respect of any such part shall be the proper proportion (as determined by agreement in writing between the owner and the occupier, or in default of such agreement by the county court or, in Scotland, the sheriff) of the rent which would be payable under that section if this Act applied to the whole of the dwelling-house.

2.—(1) So long as this Act applies to a dwelling-house, the occupier shall, except as otherwise provided by this section, be required to observe and be entitled to the benefit of all the terms and conditions of the relevant tenancy to which he was subject and entitled immediately before the date referred to in paragraph (b) of subsection (2) of section one of this Act; and for the purposes of this subsection that tenancy shall be treated as including a term requiring the landlord to provide for the tenant any services which were ordinarily provided for him by the landlord or a superior landlord before the second day of April, nineteen hundred and fifty-eight.

Obligations
and rights of
persons
holding over.

(2) Notwithstanding anything in the said terms and conditions, the rent to be paid by the occupier under this section in respect of any rental period or part of a rental period shall be a rent of which the annual rate is equal to the aggregate of—

- (a) the 1956 gross value of the dwelling-house multiplied by two;
- (b) the annual amount, ascertained in accordance with the Second Schedule to the Rent Act, 1957, of any rates in respect of the dwelling-house for the rental period for which the rent is payable which are borne by the owner or a superior landlord;
- (c) such annual charge as may be reasonable for any services provided for the occupier during that rental period, being services provided in pursuance of this section, and for any furniture which, by virtue of this section, the occupier is entitled to use during that period;

and (without prejudice to the liability of any person in respect of any other damage or dilapidations) the occupier shall be treated as exclusively responsible for all internal decorative repairs, and the owner as exclusively responsible for all other repairs, being in each case repairs required to make good damage or dilapidations occurring during the application of this Act to the dwelling-house:

Provided that where the rent recoverable for the last controlled rental period exceeds the rent which would have been payable for that period under the foregoing provisions of this subsection, the rent to be paid by the occupier under this section shall be at the rate of the rent recoverable for the last controlled rental period, subject to the like increase or reduction, if any, as would be required to be made in the rent limit under section three or section four of the Rent Act, 1957 (which relate respectively to adjustments in respect of rates and in respect of services and furniture) if the Rent Acts had not ceased to apply to the dwelling-house and if the last controlled period were the basic rental period within the meaning of that Act; and so much of this subsection as relates to responsibility for repairs shall not apply.

(3) Any question what charge is reasonable for the purposes of paragraph (c) of subsection (2) of this section shall be determined by agreement in writing between the owner and the occupier, and in default of such agreement by the county court.

(4) Nothing in this section shall be construed as conferring on the occupier of the dwelling-house any estate or interest therein or any power to create such an estate or interest, nor as affecting the right of the owner, subject to any other provision of this Act, to recover possession of the dwelling-house at any time without notice or further notice to quit.

(5) In the application of this section to Scotland, for subsection (2) there shall be substituted the following subsection—

“(2) Notwithstanding anything in the said terms and conditions, the rent to be paid by the occupier under this section in respect of any rental period or part of a rental period shall be at the rate of a rent equal to the aggregate of the following amounts, that is to say—

(a) an amount equal to the rent recoverable for the last rental period ending before the time at which the Rent Acts ceased to apply to the dwelling-house by virtue of subsection (1) of section eleven of the Rent Act, 1957, exclusive of any part thereof then recoverable by way of repairs increase; and

(b) an amount equal to one-half of the rent which was recoverable for the last rental period ending immediately before the commencement of the Housing (Repairs and Rents) (Scotland) Act, 1954,

and (without prejudice to the liability of any person in respect of any other damage or dilapidations) the occupier shall be treated as exclusively responsible for all internal decorative repairs, and the owner as exclusively responsible for all other repairs, being in each case repairs required to make good damage or dilapidations occurring during the application of this Act to the dwelling-house.

In this subsection ‘repairs increase’ has the like meaning, and the reference to the rent which was recoverable immediately before the commencement of the Housing (Repairs and Rents) (Scotland) Act, 1954, shall be construed in like manner, as in that Act.”

and subsection (3) shall be omitted.

Suspension
of execution
of order for
possession.

3.—(1) Without prejudice to the power of any court apart from this section to postpone the operation or suspend the execution of an order for possession, if in proceedings by the owner against

the occupier for the recovery of possession of a dwelling-house to which this Act applies the occupier satisfies the court—

- (a) that he has not unreasonably refused or failed to accept any proposal made by the owner for the grant of a new tenancy of the premises or part of the premises, being a tenancy for a term of not less than three years and not being a tenancy to be granted at a premium or requiring the payment of increased rent in respect of any period before the date on which the proposal was made;
- (b) that he has failed, after making such efforts as were reasonable in the circumstances, to obtain other appropriate accommodation;
- (c) that all rent due in respect of the period from the date referred to in paragraph (b) of subsection (2) of section one of this Act (or, in so far as the amount of the rent payable in respect of that period has not been determined a reasonable sum in respect of that rent) has been paid or tendered to the owner; and
- (d) that having regard to all the circumstances of the case greater hardship would be caused by making an order for possession without such suspension of execution as is provided by this section than by granting such suspension,

then, subject to the provisions of this section, the court shall suspend the execution of any order for possession made in the proceedings for such period, not being less than three nor more than nine months from the date of the order, as the court thinks fit.

(2) In relation to any period for which the execution of an order for possession of a dwelling-house is suspended under this section, subsection (2) of section two of this Act (except so far as that subsection relates to responsibility for repairs) shall not apply, but the rent to be paid by the occupier in respect of any rental period or part of a rental period falling within the period of suspension shall be at such rate as may be specified in the order, being the rate demanded by the owner or, if the court is satisfied that a rent at the rate so demanded would be beyond the means of the occupier, such lower rate as appears to the court to be within his means, not being less than the rate at which rent was payable immediately before the beginning of the period of suspension:

Provided that the rent payable by virtue of this subsection shall be subject to the like increase or reduction, if any, as would be required to be made in the rent limit under section three or section four of the Rent Act, 1957, if the Rent Acts had not

ceased to apply to the dwelling-house and if the rental period comprising the date of the order were the basic rental period within the meaning of that Act.

(3) In considering whether any of the conditions specified in paragraph (a) or paragraph (b) of subsection (1) of this section are fulfilled, regard shall be had, among other things, to the means of the occupier, to his age, and to any disability to which he may be subject, and (without prejudice to the generality of the foregoing provision) in considering whether a refusal or failure to accept any such proposal as is referred to in the said paragraph (a) was reasonable, regard shall be had in particular to the terms of that proposal relating to repairs, improvements or maintenance.

(4) Where the execution of an order has been suspended under this section for any period, the court may—

(a) upon application made by the occupier not less than twenty-eight clear days before the expiration of that period or, with the leave of the court, at any subsequent time within that period, and upon being satisfied that the conditions specified in subsection (1) of this section continue to be fulfilled, suspend the execution for such further period, not exceeding six months at any one time, as the court thinks fit;

(b) upon application made by the owner or the occupier at any time, and upon being satisfied that the circumstances by reference to which the rent specified in the order was determined have substantially changed since the order was made, vary the order so far as it specifies that rent;

and where an application is duly made under paragraph (a) of this subsection, the execution of the order shall in any case be treated as suspended while that application is pending.

(5) A suspension of execution under subsection (1) or subsection (4) of this section may, if the court thinks fit, be granted notwithstanding that any such rent or sum as is mentioned in paragraph (c) of the said subsection (1) has not been paid or tendered, but any such suspension shall be granted subject to the payment of the amount outstanding within twenty-eight days.

(6) Notwithstanding anything in subsection (1) or subsection (4) of this section—

(a) if the court is satisfied—

(i) that an agreement for the sale of, or for the grant of a tenancy of, the dwelling-house is in force under which the owner is obliged to give vacant possession of the dwelling-house on a date specified therein;

(ii) that the purchaser or tenant requires the dwelling-house for his own occupation or for occupation by any son or daughter of his over eighteen years of age, or by his father or mother; and

(iii) that the said agreement, or a memorandum or note thereof, was signed by or on behalf of the owner before the second day of April, nineteen hundred and fifty-eight,

no suspension of execution shall be granted by virtue of this section beyond the time at which the owner is obliged to give vacant possession as aforesaid; and

- (b) in any case where, if the Rent Acts had not ceased to apply to the dwelling-house, the court would have had power to make an order for the recovery of possession by the owner, the court may refuse to grant any suspension of execution, or revoke any such suspension already granted, as the case may be.

(7) Any reference in this section to the means of the occupier of a dwelling-house includes a reference to the means of any members of the family of the occupier residing with him who have contributed or might reasonably be expected to contribute to the expenses of the household.

(8) In the application of this section to Scotland the proviso to subsection (2), and in subsection (6), the words "or a memorandum or note thereof" shall be omitted.

4.—(1) Section seventeen of the Act of 1920 (which provides Supplementary provisions. for the making of rules of procedure for purposes of that Act, and extends the jurisdiction of county courts and sheriff courts in respect of proceedings under that Act) shall have effect as if references to that Act included references to this Act; and for the purposes of that section any proceedings for the recovery of possession of a dwelling-house to which this Act applies shall be deemed to be proceedings under this Act.

(2) In proceedings for the recovery of possession of a dwelling-house in which a suspension of execution is granted or refused under section three of this Act (including any application under that section arising out of the grant of such suspension) the court shall not have power to make an order for costs except—

- (a) where a suspension of execution is refused or revoked in pursuance of paragraph (b) of subsection (6) of that section; or
- (b) where it appears to the court, having regard to the conduct of the parties respectively in and in connection with the proceedings, that there are special reasons for the making of such an order.

(3) In section ten of the Act of 1933 (which enables local authorities to publish for the assistance of landlords and tenants information as to their rights and duties under the principal Acts) the reference to the principal Acts shall include a reference to this Act, and the references to landlords and tenants shall be construed accordingly.

(4) Where any mortgaged property consists of or comprises a dwelling-house to which this Act applies, the Rent Acts shall have effect in relation to the mortgage as if they had not ceased to apply to the dwelling-house; and any question whether a mortgage is a mortgage to which those Acts apply, or whether or in what manner the principal moneys secured by the mortgage can be apportioned by subsection (5) of section twelve of the Act of 1920, shall be determined accordingly.

(5) In Scotland any proceedings for the recovery of possession of a dwelling-house to which this Act applies and any application to the court made under section three of this Act shall be conducted and disposed of in like manner as proceedings brought under the Small Debt (Scotland) Acts, 1837 to 1889, and the determination of the court in any such proceedings or application shall be final.

(6) In the application of this section to Scotland, "costs" means expenses, "mortgage" means a heritable security including a security constituted by absolute disposition qualified by back bond or letter, and "mortgaged" shall be construed accordingly.

Interpretation,
short title,
duration and
extent.

5.—(1) In this Act the following expressions have the meanings hereby respectively assigned to them, that is to say:—

"Act of 1920" means the Increase of Rent and Mortgage Interest (Restrictions) Act, 1920, and "Act of 1933" means the Rent and Mortgage Interest Restrictions (Amendment) Act, 1933;

"dwelling-house", "landlord", "rates", "rental period", "tenancy", "controlled tenancy", "statutory tenancy", "tenant" and "1956 gross value" have the same meanings as in the Rent Act, 1957;

"last controlled rental period" means, in relation to a dwelling-house, the last rental period ending before the date referred to in paragraph (b) of subsection (2) of section one of this Act;

"occupier" has the meaning assigned by section one of this Act, and "owner", in relation to a dwelling-house, means the person who, as against the occupier, is entitled to possession of the dwelling-house;

“premium” includes any fine or like sum or any other pecuniary consideration in addition to rent;

“relevant tenancy” means, in relation to a dwelling-house,—

(a) where, immediately before the commencement of the Rent Act, 1957, the dwelling-house was the subject of a statutory tenancy, the original contract of tenancy referred to in section fifteen of the Act of 1920;

(b) where the dwelling-house was then the subject of a controlled tenancy not being a statutory tenancy, that tenancy;

“Rent Acts” means the Rent and Mortgage Interest (Restrictions) Acts, 1920 to 1939.

(2) References in this Act to any enactment are references to that enactment as amended or applied by any other enactment; and without prejudice to the foregoing provision, any reference in this Act to paragraph 2 of the Fourth Schedule to the Rent Act, 1957, includes a reference to that paragraph as applied by paragraph 9 of that Schedule.

(3) This Act may be cited as the Landlord and Tenant (Temporary Provisions) Act, 1958.

(4) This Act shall continue in force until the expiration of the period of three years beginning with the date on which it is passed, and shall then expire.

(5) On the expiration of this Act subsection (2) of section thirty-eight of the Interpretation Act, 1889 (which relates to the effect of repeals) shall have effect as if this Act had been repealed by another Act; and without prejudice to the generality of the foregoing provision, any order for suspension of execution then in force shall continue in force and may be revoked as if this Act had not expired.

(6) This Act shall not extend to Northern Ireland.

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Table of Statutes referred to in this Act

Short Title	Session and Chapter
Interpretation Act, 1889	52 & 53 Vict. c. 63.
Increase of Rent and Mortgage Interest (Restrictions) Act, 1920	10 & 11 Geo. 5. c. 17.
Rent and Mortgage Interest Restrictions (Amendment) Act, 1933	23 & 24 Geo. 5. c. 32.
Housing (Repairs and Rents) (Scotland) Act, 1954	2 & 3 Eliz. 2. c. 50.
Rent Act, 1957	5 & 6 Eliz. 2. c. 25.